Rizzetta & Company

Bobcat Trail
Community Development District

Board of Supervisors' Meeting
March 4, 2025

District Office:
9530 Marketplace Road, Suite 206
Fort Myers, Florida 33912
(239) 936-0913

www.bobcatcdd.com

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288

www.bobcatcdd.com

Board of Supervisors	Steven Ball	Chairperson
	Jeffrey Brall	Vice Chairperson
	Paul Fisher	Assistant Secretary
	Michael SanAntonio	Assistant Secretary
	Robert Branch	Assistant Secretary
District Manager	Belinda Blandon	Rizzetta & Company, Inc.
District Counsel	David Jackson	Persson, Cohen, Mooney, Fernandez & Jackson, P.A.
District Engineers	Robert Dvorak	BDI Engineers

All cellular phones must be placed on mute while in the meeting room.

The Audience Comment portion of the agenda is where individuals may make comments on matters that concern the District. Individuals are limited to a total of three (3) minutes to make comments during this time.

Pursuant to provisions of the Americans with Disabilities Act, any person requiring special accommodations to participate in this meeting/hearing/workshop is asked to advise the District Office at least forty-eight (48) hours before the meeting/hearing/workshop by contacting the District Manager at (239) 936-0913. If you are hearing or speech impaired, please contact the Florida Relay Service by dialing 7-1-1, or 1-800-955-8771 (TTY) 1-800-955-8770 (Voice), who can aid you in contacting the District Office.

A person who decides to appeal any decision made at the meeting/hearing/workshop with respect to any matter considered at the meeting/hearing/workshop is advised that person will need a record of the proceedings and that accordingly, the person may need to ensure that a verbatim record of the proceedings is made including the testimony and evidence upon which the appeal is to be based.

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

District Office · Ft. Myers, Florida · (239) 936-0913
Mailing Address · 3434 Colwell Avenue, Suite 200, Tampa, Florida 33614

www.bobcatcdd.com

February 26, 2025

Board of Supervisors
Bobcat Trail Community
Development District

REVISED AGENDA

Dear Board Members:

The regular meeting of the Board of Supervisors of Bobcat Trail Community Development District will be held on **Tuesday, March 4, 2025, at 3:00 p.m.** at the Bobcat Trail Community Center located at 1352 Bobcat Trail Blvd., North Port, Florida 34288. The following is the revised agenda for this meeting:

1. **CALL TO ORDER/ROLL CALL**
2. **PLEDGE OF ALLEGIANCE**
3. **APPROVAL OF AGENDA**
4. **PUBLIC COMMENTS – AGENDA ITEMS ONLY**
5. **BUSINESS ADMINISTRATION**
   - A. Consideration of the Minutes of the Board of Supervisors' Meeting held on February 4, 2025..... Tab 1
   - B. Consideration of the Minutes of the Board Workshop Held on February 20, 2025..... Tab 2
   - C. Ratification of Operations and Maintenance Expenditures for the Month of January 2025..... Tab 3
6. **OLD BUSINESS**
   - A. FEMA Discussion
7. **NEW BUSINESS**
   - A. Consideration of Contract for Professional Technology Services..... Tab 4
   - B. Resident Concerns
8. **CONSENT ITEMS**
   - A. Acceptance of Committee Meeting Minutes ..... Tab 5
     - i. Landscape Committee Meeting Minutes of January 21, 2025
9. **STAFF REPORTS**
   - A. Field Manager ..... Tab 6
   - B. District Engineer
   - C. District Counsel
   - D. District Manager ..... Tab 7
10. **OTHER REPORTS**
    - A. Infrastructure/Asset Management Committee (Board Workshop)
    - B. Landscape Committee
    - C. Newsletter Supervisor
    - D. Finance Supervisor

E. Lakes and Roads Supervisor
   i. Solitude Waterway Inspection Report
   ii. Solitude Monitoring Reports
F. Maintenance Supervisor
G. Facilities Supervisor
H. HOA Updates
I. Commercial Properties

11. PUBLIC COMMENTS
12. SUPERVISOR REQUESTS
13. ADJOURNMENT

We look forward to seeing you at the meeting. In the meantime, if you have any questions, please do not hesitate to contact me at (239) 936-0913.

Very truly yours,
Belinda Blandon
Belinda Blandon
District Manager

cc: David Jackson: Persson, Cohen, Mooney, Fernandez & Jackson, P.A.

Tab 1

MINUTES OF MEETING

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

BOBCAT TRAIL
COMMUNITY DEVELOPMENT DISTRICT

The regular meeting of the Board of Supervisors of the Bobcat Trail Community Development District was held on **Tuesday, February 4, 2025, at 3:00 p.m.** at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd., North Port, FL 34288.

Present and constituting a quorum:

Steven Ball	**Board Supervisor, Chair**
Jeffrey Brall	**Board Supervisor, Vice Chair**
Paul Fisher	**Board Supervisor, Assistant Secretary**
Michael SanAntonio	**Board Supervisor, Assistant Secretary**
Robert Branch	**Board Supervisor, Assistant Secretary**

Also present were:

Belinda Blandon	**District Manager, Rizzetta & Company, Inc.**
David Jackson	**District Counsel, Persson, Cohen, Mooney, Fernandez & Jackson, P.A.**
John Fowler	**Landscape/Aquatic Inspection Services (via Teams)**
Audience	

FIRST ORDER OF BUSINESS **Call to Order/Roll Call**

Ms. Blandon called the meeting to order and read roll call.

SECOND ORDER OF BUSINESS **Pledge of Allegiance**

The Board, Staff, and Audience recited the Pledge of Allegiance.

THIRD ORDER OF BUSINESS **Public Comments – Agenda Items Only**

Ms. Blandon opened the floor for public comment for agenda items only.

A resident addressed the Board regarding his concerns with an agenda item pertaining to the removal of pine trees.

There were no additional public comments.

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FOURTH ORDER OF BUSINESS **Consideration of the Minutes of the Board of Supervisors' Meeting held on January 7, 2025**

Ms. Blandon presented the Minutes of the Board of Supervisors meeting held on January 7, 2025, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board Approved the Minutes of the Board of Supervisors Meeting held on January 7, 2025, for the Bobcat Trail Community Development District.

FIFTH ORDER OF BUSINESS **Consideration of the Minutes of the Board Workshops held on January 7, 2025, and January 16, 2025**

Ms. Blandon presented the Minutes of the Workshops held on January 7, 2025, and January 16, 2025, and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. Brall, seconded by Mr. SanAntonio, with all in favor, the Board Approved the Minutes of the Board of Supervisors Workshops held on January 7, 2025, and January 16, 2025, for the Bobcat Trail Community Development District.

SIXTH ORDER OF BUSINESS **Ratification of Operations and Maintenance Expenditures for the Month of December 2024**

Ms. Blandon advised that operations and maintenance expenditures for the period of December 1-31, 2024 totaled $68,782.09 and asked if there were any questions, comments, and/or changes. There were none.

> On a Motion by Mr. Fisher, seconded by Mr. Branch, with all in favor, the Board Ratified the Operations and Maintenance Expenditures for the Month of December 2024, totaling $68,782.09, for the Bobcat Trail Community Development District.

SEVENTH ORDER OF BUSINESS **Discussion Regarding FEMA Appeal**

The Board discussed the denial of the appeal filed with FEMA. After discussion, Mr. Brall agreed to contact the attorney representing the District and request a cost proposal to file a second appeal. It was agreed that this item will be discussed at the next Workshop.

EIGHTH ORDER OF BUSINESS **Discussion Regarding Hiring a Maintenance Person**

Mr. Branch provided the Board with a resume for a candidate he recommended to

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be hired for the maintenance position. The Board discussed the candidate and the position, agreeing on pay and hours scheduled.

> On a Motion by Mr. SanAntonio, seconded by Mr. Fisher, with all in favor, the Board Hired the Candidate as Presented for the Maintenance Position, for the Bobcat Trail Community Development District.

NINTH ORDER OF BUSINESS **Discussion and Consideration of Paramount Asphalt & Sealcoating Proposal for Sidewalk Repairs**

Mr. Ball discussed the proposal presented by Paramount Asphalt and Sealcoating for sidewalk repairs. He provided the Board with an overview of how many locations and slabs that will be repaired. The Board discussed the proposal and sidewalk repairs.

> On a Motion by Mr. Ball, seconded by Mr. SanAntonio, with all in favor, the Board Approved the Paramount Asphalt & Sealcoating Proposal for Sidewalk Repairs, in the Amount of $13,000.00, subject to an Addendum Prepared by District Counsel for the Bobcat Trail Community Development District.

TENTH ORDER OF BUSINESS **Discussion and Consideration of Finn Outdoor Proposal Storm Drain Repair Proposal (2662 Royal Palm Drive)**

Mr. Ball provided an overview of the proposal presented from Finn Outdoor for the repair of the storm drain located at 2662 Royal Palm Drive. The Board discussed the proposal.

> On a Motion by Mr. Ball, seconded by Mr. Branch, with all in favor, the Board Approved the Finn Outdoor Proposal for Storm Drain Repairs, in the Amount of $3,250.00, for the Bobcat Trail Community Development District.

ELEVENTH ORDER OF BUSINESS **Resident Concerns**

Mr. Branch discussed resident concerns regarding contractors wanting to enter the community through the back gate. He informed the Board that a new sign for the rear gate was ordered.

TWELFTH ORDER OF BUSINESS **Discussion and Consideration of Pine Tree Removal Proposals**

Mr. Brall provided an overview of the proposals for pine tree removal presented by Greentopps and Perrys Land & Lawn. Board discussion ensued regarding the proposals. After discussion, no further action was taken and Mr. Brall advised that he notify the homeowner of their options.

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THIRTEENTH ORDER OF BUSINESS **Consent Items**

Ms. Blandon advised that the consent items consist of the Landscape Advisory Committee Meeting Minutes of December 17, 2024. She asked if there were any questions or comments. There were none.

On a Motion by Mr. Brall, seconded by Mr. Fisher, with all in favor, the Board Accepted the Consent Items as Presented, for the Bobcat Trail Community Development District.

FOURTEENTH ORDER OF BUSINESS **Staff Reports**

A. Field Manager
Mr. Fowler provided the Board with an overview of his inspection report regarding aquatics and landscaping. Mr. Brall advised that lake debris was cleaned up.

B. District Engineer
Mr. Ball advised that the District Engineer will be meeting with the City of North Port on February 26, 2025, to review the design and plans for the handicapped parking. He further advised that after the meeting is concluded, the plans will be presented to the Board if approved.

C. District Counsel
Mr. Jackson advised that the Case Management Conference for the golf course injunction was moved to mid-March. He also advised that the foreclosure is pending with a date of May 29, 2025. District Counsel provided the Board with an overview of the workers compensation litigation as the HOA was informed by Morgan & Morgan that their insurance should be notified.

D. District Manager
Ms. Blandon advised that the next Board of Supervisors meeting is scheduled for Tuesday, March 4, 2025, at 3:00 p.m.

She provided the Board with an overview of her report and informed the Board of pending contracts that will be obtained and provided to the Board for consideration, asked the Board if there were any questions and there were none.

FIFTEENTH ORDER OF BUSINESS **Other Reports**

A. Infrastructure/Asset Management Committee (Board Workshop)
Mr. Ball advised that the sign for the Community Center will be ordered.

B. Landscape Committee
Mr. Brall provided an update on the Landscape Committee. He informed the Board that a ride around was done with ArisTree and they are working on a budget for next year. He advised that the landscaping lighting areas in need of repairs were reviewed as well as areas that needs additional lighting. The Committee is working on obtaining estimates and should have them by next week.

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C. Newsletter Supervisor
Mr. Fisher advised that the newsletter would go out after the next workshop. He asked that if anything needs to be added that it be sent to him.

D. Finance Supervisor
Mr. Fisher informed Ms. Blandon that he plans to provide Ms. Blandon with a tentative budget sometime in March.

E. Lakes and Roads Supervisor
Mr. Ball provided the Board with updates on matters pertaining to the lakes and paving. He informed the Board that Solitude is working on an aggressive schedule to get the weeds under control. He advised the volunteer turnout for lake bank clean-up was fantastic. He discussed the paving as well as the next steps for the project including probable cost.

F. Maintenance Supervisor
Mr. Branch advised the Board that Signet reported the breakers are continuously tripping in the pool panel, and it appears to be due to the filter grates. He informed the Board that he received a proposal for $2,542.50 to replace them. The Board discussed.

On a Motion by Mr. Branch, seconded by Mr. Fisher, with all in favor, the Board Approved the Proposal as presented in the amount of $2,542.50, for the Bobcat Trail Community Development District.

G. Facilities Supervisor
Mr. SanAntonio advised that the gatehouse air conditioning is being repaired. He informed the Board that the new television was being installed after the meeting.

H. HOA Updates
There were no updates.

I. Commercial Properties
There were no updates for commercial properties.

SIXTEENTH ORDER OF BUSINESS Public Comments

A resident spoke regarding an alligator issue within the community.

A resident spoke regarding a recent meeting with the City of North Port.

A resident spoke regarding concerns with a vendor and unauthorized repairs.

There were no additional public comments.

SEVENTEENTH ORDER OF BUSINESS Supervisor Requests

Ms. Blandon asked if there were any Supervisor requests or comments.

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Mr. Brall spoke regarding photographs of for FEMA appeal.

Mr. Ball spoke regarding the alligator issue.

EIGHTEENTH ORDER OF BUSINESS Adjournment

Ms. Blandon stated that there was no further business to come before the Board and asked for a motion to adjourn.

On a Motion by Mr. Brall, seconded by Mr. Branch, with all in favor the Board adjourned the Meeting at 4:01 p.m., for the Bobcat Trail Community Development District.

_____ _____

Secretary/Assistant Secretary Chairman/Vice Chairman

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Tab 2

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

MEETING MINUTES

February 20, 2025

MINUTES OF INFRASTRUCTURE – ASSET WORKSHOP

Each person who decides to appeal any decision made by the Board with respect to any matter considered at the meeting is advised that the person may need to ensure that a verbatim record of the proceedings is made, including the testimony and evidence upon which such appeal is to be based.

The workshop of the Infrastructure-Asset Committee of the Bobcat Trail Community Development District was held on Thursday, February 20, 2025 at 3:00 PM at the Bobcat Trail Community Center, 1352 Bobcat Trail Blvd, North Port, FL 34288.

Present and constituting a quorum:

Steven Ball	Board Supervisor, Chairman
Jeffrey Brall	Board Supervisor, Vice Chairman
Michael SanAntonio	Board Supervisor, Assistant Secretary
Paul Fisher	Board Supervisor, Assistant Secretary
Robert Branch	Board Supervisor, Assistant Secretary

Call to Order/Roll Call

Meeting was called to order at 3:00 PM by Steven Ball. Present were Steven Ball, Jeff Brall, Michael SanAntonio and Paul Fisher and Robert Branch.

Pledge of Allegiance

Approval of Agenda

Approved and no additional items were added.

Public Comments

None

Old Business

A. FEMA Discussion: Supervisor Brall reviewed FEMA Appeal and next steps. Cost would be $2,500 to appeal. Board will review on 3-4 meeting.
B. Handicapped Parking: Supervisor Ball reviewed the status of the engineer's preliminary report. Meeting with City of North Port on 2-26
C. Pump House Discussion: Supervisor Brall reviewed the cost to take over all services at the pump house and CDD would be reimbursed with Tax Assessment to Golf Course. Board will review in 3-4 meeting
D. Community Center Sign to be ordered.

New Business

A. PRV Report Supervisor Branch Review status of PRV. Two PRV valves need to be replaced. Hoover will be contacted to make repairs.
B. Storm Drain Collapsed. Finn Outdoor has ordered the new pipe and will schedule repair.

C. Pool Furniture: Supervisor Branch reviewed the condition of pool furniture and stated it needs to be replaced. He is looking at the options of buying new furniture or leasing. He will review costs with the board.
D. Tennis/ Pickleball Court Surface. Supervisor Branch reviewed the condition of the court. He has one quote for $15,000 to re surface court. The Board will look at other options. Dave Filler commented that the State may offset some of the cost with a new grant program. The board will review this option.

Resident Concerns
Supervisor Ball reviewed a concern regarding alligator trapping and confirmed that the permit in Bobcat Trail is closed.

Supervisor Updates
A. Supervisor Fisher requested 2026 Budgets for the February meeting.
B. Supervisor Brall reviewed the installation of landscape edging by gate house and will have new maintenance person install.
C. Supervisor Ball reviewed road paving bids.
D. Supervisor SanAntonio reviewed cost of new audio system for the community center that would allow for residents with hearing aids to connect. Cost of system would be $20,432. He is obtaining more proposals.

Public Comments
A. None

Adjournment
Adjournment at 3:57 PM.

Tab 3

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

DISTRICT OFFICE · FT. MYERS, FLORIDA
MAILING ADDRESS · 3434 COLWELL AVENUE, SUITE 200 · TAMPA, FLORIDA 33614

Operation and Maintenance Expenditures
January 2025
For Board Approval

Attached please find the check register listing the Operation and Maintenance expenditures paid from January 1, 2025 through January 31, 2025. This does not include expenditures previously approved by the Board.

The total items being presented:

Approval of Expenditures:

_____

_____ Chairperson

_____ Vice Chairperson

_____ Assistant Secretary

Bobcat Trail Community Development District

Paid Operation & Maintenance Expenditures

January 1, 2025 Through January 31, 2025

Vendor Name	Check Number	Invoice Number	Invoice Description	Invoice Amount
ADP Easypay	20250110-1	679294926 ACH	ADP Fee PPE 12/29/24	$ 106.65
ADP Easypay	20250124-1	680243283 ACH	ADP Fee PPE 01/12/25	$ 106.65
ADP Easypay	20250129-5	680785394 ACH	ADP Fee PPE 12/28/24 W-2's	$ 129.90
Artistree Landscape Maintenance & Design STE B	100118	181595	Monthly Maintenance12/24	$ 9,970.40
Artistree Landscape Maintenance & Design STE B	100118	181596	Monthly Maintenance-Entrance 12/24	$ 2,492.60
Artistree Landscape Maintenance & Design STE B	100118	181965	Tree Removal & Replacement 12/24	$ 642.24
Artistree Landscape Maintenance & Design STE B	100131	182111	Irrigation Repairs 01/25	$ 149.18
Artistree Landscape Maintenance & Design STE B	100131	182163	Monthly Maintenance 01/25	$ 9,970.40
Artistree Landscape Maintenance & Design STE B	100131	182164	Monthly Maintenance-Entrance 01/25	$ 2,492.60
Bobcat Trail Homeowners Association, Inc.	100121	2052	Tamiami Sidewalk Project - 25% Deposit 12/24	$ 21,060.00
Brletic Dvorak, Inc.	100132	1774	Engineering Services 12/24	$ 1,500.00
City of North Port Utilities	20250121-2	34841-152336 12/24 ACH	1350 Bobcat Trl 12/24	$ 65.59

Bobcat Trail Community Development District

Paid Operation & Maintenance Expenditures

January 1, 2025 Through January 31, 2025

Vendor Name	Check Number	Invoice Number	Invoice Description	Invoice Amount
City of North Port Utilities	20250121-2	34841-153028 12/24 ACH	1350 Bobcat Trl-Pool 12/24	$ 318.00
City of North Port Utilities	20250121-2	34841-175058 12/24 ACH	1352 Bobcat Trl - Office Bld 12/24	$ 343.75
City Wide Facility Solutions	100125	32019029535	Janitorial Services 1/25	$ 1,000.00
Custom Reserves LLC	100122	R1471.24	Reserve Study 09/24	$ 2,700.00
Florida Department of Revenue	20250107-1	68-8015548212-6 12/24 ACH	Sales Tax 12/24	$ 23.17
Florida GymTech, LLC	100133	123241	Quarterly Maintenance 12/24	$ 170.00
Florida Power & Light Company	20250106-2	00592-38485 ACH 12/24	2975 Bobcat Village 12/24	$ 159.26
Frontier Florida, LLC	20250106-1	941-423-9035-100518-5 12/24	Internet 12/24	$ 125.98
Frontier Florida, LLC	20250106-1	941-426-5773-102122-5 12/24	Internet Service 12/24	$ 215.98
Frontier Florida, LLC	20250121-1	941-426-0808-022310-5 01/25	Phone/Internet/Cable Services 01/24	$ 599.95
Frontier Florida, LLC	20250122-1	941-423-6750-122914-5 01/25 ACH	Phone/Internet/Cable Services 01/24	$ 109.98
Gannett Florida LocaliQ	100134	0006884791	Legal Advertising 12/24	$ 147.75

Bobcat Trail Community Development District

Paid Operation & Maintenance Expenditures

January 1, 2025 Through January 31, 2025

Vendor Name	Check Number	Invoice Number	Invoice Description	Invoice Amount
Hidden Eyes, LLC	100119	748700	Video Monitoring & Maintenance 01/25	$ 5,780.00
Hidden Eyes, LLC	100119	749465	Amenities 11/26/24-01/31/25	$ 82.33
Hidden Eyes, LLC	100126	749876	Video Monitoring & Maintenance 02/25	$ 5,818.00
Hidden Eyes, LLC	100126	INV00008088	Gate Maintenances - Balance 12/24	$ 7,873.10
Hidden Eyes, LLC	100135	00089942	Service Call - Entrance Cameras 12/24	$ 1,340.00
Jeffrey Brall	20250115-4	JB010725 ACH	Board of Supervisor Meeting 01/07/25	$ 200.00
Jeffrey Brall	20250129-1	JB011625 ACH	Board of Supervisor Meeting 01/16/25	$ 200.00
Jera Stratton	100123	010824 Stratton	Holiday Bonus 2024	$ 200.00
Main Gate Enterprises, Inc.	100136	35460	Service Call 08/27/24	$ 200.00
Main Gate Enterprises, Inc.	100136	35590	Service Call 09/26/24	$ 200.00
Metro PSI Corp	100120	55159	Monthly Services 11/24	$ 145.00
Metro PSI Corp	100127	55363	Monthly Services 12/24	$ 145.00

Bobcat Trail Community Development District

Paid Operation & Maintenance Expenditures

January 1, 2025 Through January 31, 2025

Vendor Name	Check Number	Invoice Number	Invoice Description	Invoice Amount
Michael SanAntonio	100128	010925 SanAntonio	Reimbursement for Supplies 01/25	$ 149.76
Michael SanAntonio	20250115-5	MS010725 ACH	Board of Supervisor Meeting 01/07/25	$ 200.00
Michael SanAntonio	20250129-4	MS011625 ACH	Board of Supervisor Meeting 01/16/25	$ 200.00
North Port Solid Waste District	20250103-1	131769-191620 11/24 ACH	1352 Bobcat Trl SWD 11/24	$ 271.92
Persson, Cohen & Mooney, P.A.	100129	5692	Legal Services 12/24	$ 1,179.00
Rizzetta & Company, Inc.	100117	INV0000096243	District Management Fees 01/25	$ 4,516.00
Robert Ditterline	100124	010825 Ditterline	Holiday Bonus 2024	$ 200.00
Robert M Branch Jr	100130	010925 Branch	Reimbursement for Supplies 01/25	$ 125.70
Robert M Branch Jr	20250115-1	RB010725 ACH	Board of Supervisor Meeting 01/07/25	$ 200.00
Signet Pool	100137	60428	Monthly Maintenance 1/25	$ 796.00
Solitude Lake Management, LLC	100138	PSI134650	Monthly Maintenance 1/25	$ 136.59
Solitude Lake Management, LLC	100138	PSI136771	Monthly Maintenance 01/25	$ 3,159.67

Bobcat Trail Community Development District

Paid Operation & Maintenance Expenditures

January 1, 2025 Through January 31, 2025

Vendor Name	Check Number	Invoice Number	Invoice Description	Invoice Amount
Solitude Lake Management, LLC	100138	PSI138423	Monthly Maintenance 01/25	$ 160.86
Steven Ball	20250115-3	SB010725 ACH	Board of Supervisor Meeting 01/07/25	$ 200.00
Steven Ball	20250129-3	SB011625 ACH	Board of Supervisor Meeting 01/16/25	$ 200.00
TECO Peoples Gas	20250114-1	211015264685 12/24 ACH	1350 Bobcat Trl 12/24	$ 20.33
Total Air Solutions, LLC	100139	107768	Repair & Maintenance 12/24	$ 322.00
Valley National Bank	20250127-1	Bobcat Trail Valley Visa 12/24	Bobcat Trail Valley Visa 12/24	$ 4,679.50
Walter P Fisher	20250115-2	WF010725 ACH	Board of Supervisor Meeting 01/07/25	$ 200.00
Walter P Fisher	20250129-2	WF011625 ACH	Board of Supervisor Meeting 01/16/25	$ 200.00
Wenzel Electrical Services Incorporated	100140	255998	Quarterly Fire Alarm Services 01/25	$ 150.00
Total Report				**$ 94,050.79**

Tab 4

CONTRACT FOR PROFESSIONAL TECHNOLOGY SERVICES

DATE: March 4, 2025

BETWEEN: **RIZZETTA & COMPANY, INC.**
3434 Colwell Avenue
Suite 200
Tampa, Florida 33614

(Hereinafter referred to as "**Consultant**")

AND: **BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT**
3434 Colwell Avenue
Suite 200
Tampa, Florida 33614

(Hereinafter referred to as "**District**," and together with Consultant, the "**Parties**.")

I. The purpose of this contract for technology services (hereinafter referred to as "**Contract**") is for the Consultant to provide professional technology services to the District pursuant to Chapter 189.069, Florida Statutes. A description of these services is provided below.

A. **ONE-TIME SERVICES.** The Consultant shall provide the following One-Time Services to the District pursuant to this Contract:

i. **Website Content** - Consultant shall provide all required content to a third party website developer who has been retained separately by the District to design a website for the District to comply with Florida law, including, but not limited to, Chapter 189.069, Florida Statutes. The required content that shall be provided by Consultant is set forth in **Exhibit A**. Consultant shall secure and register a domain name in the District's name, which the domain shall be owned by the District, for purposes of establishing the website.

ii. **E-mail Set-up** - Consultant shall establish and register a domain name in the District's name for purposes of setting up and creating individual e-mail addresses for supervisors, staff or employees as designated by the District. Said domain name shall be owned by the District.

B. **STANDARD ON-GOING SERVICES**. The Consultant shall provide the following Standard On-Going Services on a monthly basis to the District pursuant to this Contract:

i. **Website Management** - Consultant shall manage the content of the website in compliance with Chapter 189.069, Florida Statutes. Consultant shall maintain the domain for the District. Consultant shall provide the website maintenance provider with documents and updated content as required in accordance with Chapter 189.0069 Florida Statutes.

ii. **E-mail** - Consultant shall provide services including ongoing maintenance of e-mail accounts, hosting and backup in accordance with public records and public records retention requirements.

II. **ADDITIONAL SERVICES**. In addition to the One-Time and Standard On-Going Services described above, or in any addendum executed between the Parties, the District may, from time to time, require additional services from the Consultant. Any services not specifically provided for in the scope of services above, as well as any changes in the scope requested by the District, shall be considered additional services. If any additional services are required or requested, the Consultant shall provide a detailed description of these services and fees for such services to the District for approval prior to beginning any additional services. The Consultant shall undertake the additional services after the District has issued its written approval of the description and fees for such services to the Consultant.

III. **LITIGATION SUPPORT SERVICES.** Upon the District's request, the Consultant shall prepare documentation in response to litigation requests and provide necessary expert testimony in connection with litigation involving the subject matter of this Contract. If the District requires or requests any litigation support services, the Consultant shall provide a detailed description of the services and fees for such services to the District for approval prior to beginning any litigation support services. The Consultant shall undertake the litigation support services after the District has issued its written approval of the description and fees for such services to the Consultant.

IV. **TERM.** The Consultant's services as provided in this Contract shall commence upon execution of this Contract. This Contract shall automatically renew annually unless terminated pursuant to its terms. The Consultant may change the prices only with the District's written consent.

V. **FEES AND EXPENSES; PAYMENT TERMS.**

A. **FEES AND EXPENSES.**

i. A schedule of fees for the services described in Sections I, II, and III of this Contract is shown in **Exhibit B** to this Contract, which is attached hereto and incorporated herein. The District shall pay the Consultant for the services provided under the terms of this Contract in accordance with the schedule of fees in **Exhibit B**. For purposes of the Consultant's compensation for services provided pursuant to this Contract, the District shall compensate the Consultant only for those services provided under the terms of this Contract. Unless otherwise specified by this Contract, the Consultant shall invoice the District for the Consultant's services in advance of each month and in the amounts set forth in **Exhibit B**. The fees for those services which are not being requested at the time this Contract is approved shall be provided to the District at such time as those services are required. Payment shall be made by the District within thirty (30) days of receipt of a correctly submitted invoice.

ii. Fees for the Standard On-Going Services described in this Contract may be negotiated annually by the Parties. Any amendment to Standard On-Going Services fees must comply with the amendment procedure in this Contract and must be reflected in the adopted General Fund Budget of the District. The District's adoption of the General Fund Budget shall not constitute the District's consent for payment of any expenses.

iii. In the event the District authorizes a change in the scope of services requested, Consultant shall submit, in writing to the District, a request for a fee amendment corresponding to the change in services being requested, if it has not already done so. Any change in the scope of requested services and the corresponding fee amendment shall comply with the amendment procedure in this Contract. Such amendment must be validly executed by the Parties before Consultant is authorized to begin providing services pursuant to the change in scope and the amended fees are adopted.

iv. For the purposes of this Contract, an out-of-pocket expense is an expense that the Consultant or one of its subcontractors, if applicable, incurs during the performance of the Standard On-Going Services, as provided in this Contract. Such out-of-pocket expenses are included in the fees shown in **Exhibit B**. Out-of-pocket expenses incurred in connection with the performance of Additional Services and Litigation Support Services shall be subject to reimbursement at cost. These expenses include, but are not limited to, airfare, mileage, transportation/parking, lodging, postage and copies.

v. Fees for services to be billed on an hourly basis shall be billed at the Consultant's current hourly rates at the time of the execution of this Contract, as set forth in **Exhibit B**. The hourly rate for the services may be amended from time to time pursuant to the amendment procedure in this Contract and in advance of such proposed change. Consultant's current hourly rates are shown in **Exhibit B** to this Contract. Any proposed change shall indicate the new hourly fee for such services.

B. PAYMENT TERMS.

i. **One-Time Services.** One-Time Services shall be billed upon completion at the fixed fee shown in **Exhibit B**.

ii. **Standard On-Going Services**. Standard On-Going Services shall be billed monthly at a fixed fee pursuant to the schedule shown in **Exhibit B**.

iii. **Additional Services.** Additional Services shall be billed monthly on an hourly basis for the hours incurred at the Consultant's current hourly rate as shown in **Exhibit B**.

iv. **Litigation Support Services.** Litigation Support Services shall be billed monthly on an hourly basis for the hours incurred at the Consultant's current hourly rate as shown in **Exhibit B**.

v. **Out-of-Pocket expenses**. Out-of-Pocket expenses of the Consultant shall be billed monthly as incurred.

All invoices shall be due and payable forty-five (45) days from the date of invoice pursuant to the Prompt Payment Act, Chapter 218.70 Florida Statutes.

VI. **SUSPENSION OF SERVICES FOR NON-PAYMENT.** The Consultant shall have the right to suspend services being provided as outlined in this Contract if the District fails to pay Consultant's invoices in a timely manner, which shall be construed as forty-five (45) days from date of the invoice or as otherwise provided by the Prompt Payment Act, Section 218.70 Florida Statutes. Consultant shall notify the District, in writing, at least ten (10) days prior to suspending services.

VII. **NON-CONTINGENCY.** The payment of fees and expenses, as outlined in this Contract, are not contingent upon any circumstance not specifically outlined in this Contract.

VIII. **AMENDMENT.** Amendments to, and waivers of, the provisions contained in this Contract may be made only by an instrument in writing that is executed by both the District and the Consultant.

IX. **RESPONSIBILITIES.**

A. **DISTRICT RESPONSIBILITIES.** The District shall provide for the timely services of its legal counsel, engineer, and any other consultants, contractors, or employees, as required, for the Consultant to perform the duties outlined in this Contract. Expenses incurred in providing this support shall be the sole responsibility of the District unless specified herein.

B. **LIMITATIONS OF RESPONSIBILITIES.** To the extent not referenced herein, Consultant shall not be responsible for the acts or omissions of any other contractor, subcontractor, supplier, or of any other individual or entity performing services that are not under the control of the Consultant or its own employees, contractors, subcontractors, agents or related entities. Consultant shall not be liable for any damage that occurs from Acts of God, which are defined as those caused by windstorm, hail, fire, flood, hurricane, freezing, or other similar occurrences of nature.

X. **TERMINATION.** This Contract may be terminated as follows:

A. By the District for "good cause" immediately which shall include misfeasance, malfeasance, nonfeasance, or dereliction of duties by the Consultant. Termination for "good cause" shall be affected by written notice to Consultant at the address noted herein.

B. By the Consultant for "good cause", immediately which shall include, but is not limited to, failure of the District to timely pay Consultant for services rendered in accordance with the terms set forth in this Contract, malfeasance, nonfeasance, or dereliction of duties by the District, or upon request or demand by the Board, or any member thereof, for Consultant to undertake any action or implement a policy of the Board which Consultant deems unethical, unlawful, or in contradiction of any applicable federal, state, or municipal law or rule. Termination for "good cause" shall be affected by written notice to District at the address noted herein.

C. By the Consultant or District, for any reason, upon provision of a minimum of sixty (60) days written notice of termination to the address noted herein.

D. Upon any termination, Consultant shall be entitled to the total amount of compensation pursuant to the terms of this Contract, through the termination date, but subject to any offsets that the District may have for services not performed. Consultant shall make all reasonable effort to provide for an orderly

transfer of the domain(s), e-mails, books and records of the District to the District or its designee. Upon termination, the District shall continue to own the domain name, e-mail accounts and e-mail and website content.

XI. GENERAL TERMS AND CONDITIONS.

A. All invoices are due and payable within thirty (30) days of invoice date, or as otherwise provided by the Florida Prompt Payment Act, Section 218.70. Florida Statutes. Invoices not paid within thirty (30) days of presentation shall be charged interest on the balance due at the maximum legally permissible rate.

B. In the event either party is required to take any action to enforce this Contract, the prevailing party shall be entitled to attorney's fees and costs, including fees and costs incurred in determining entitlement to and reasonableness of such fees and costs.

C. This Contract shall be interpreted in accordance with and shall be governed by the laws of the State of Florida. Venue for all proceedings shall be in Sarasota County, Florida.

E. In the event that any provision of this Contract shall be determined to be unenforceable or invalid by a Court of Law, such unenforceability or invalidity shall not affect the remaining provisions of the Contract which shall remain in full force and effect.

D. The rights and obligations of the District as defined by this Contract shall inure to the benefit of and shall be binding upon the successors and assigns of the District. There shall be no assignment of this Contract by the Consultant.

E. The Consultant and its officers, supervisors, staff, and employees shall use due care to protect the property of the District, its residents, and landowners from damage. The Consultant agrees to take steps to repair any damage resulting from the Consultant's activities and work pursuant to the Contract within twenty-four hours (24) hours.

F. Dissolution or court declared invalidity of the District shall not relieve the District of compensation due for services theretofore rendered.

XII. INDEMNIFICATION.

A. DISTRICT INDEMNIFICATION. To the extent allowable under applicable law (and only to the extent of the limitations of liability set forth in Section 768.28, Florida Statutes), and except and to the extent caused by the negligence, reckless and/or willful misconduct of the Consultant or persons or entities within Consultants control and direction, the District agrees to

indemnify and hold harmless the Consultant and its officers, supervisors, staff, and employees from and against any and all liability, claims, actions, suits, demands, assessments or judgments asserted and any and all losses, liabilities, damages, costs, court costs, and expenses, including attorney's fees, that Consultant may hereafter incur, become responsible for, or be caused to pay out arising out of or relating to the negligent, reckless, and/or intentionally wrongful acts or omissions of the District that relates to the subject matter of this Contract. The indemnification provided for herein shall not be deemed exclusive of any other rights to which the Consultant may be entitled and shall continue after the Consultant has ceased to be engaged under this Contract.

CONSULTANT INDEMNIFICATION. The Consultant agrees to indemnify, defend, and hold harmless the District and its officers, supervisors, staff, and employees from and against any and all liability, claims, actions, suits, demands, assessments or judgments asserted and any and all losses, liabilities, damages, costs, court costs, and expenses, including attorney's fees, that the District may hereafter incur, become responsible for, or be caused to pay arising out of or relating to the negligent, reckless, and/or intentionally wrongful acts or omissions of the Consultant. The indemnification provided for herein shall not be deemed exclusive of any other rights to which the District may be entitled and shall continue after the Consultant has ceased to be engaged under this Contract.

The terms of this Section shall survive termination of this Contract.

B. SOVEREIGN IMMUNITY; INDEMNIFICATION OBLIGATIONS. Nothing herein shall be construed to limit the District's sovereign immunity limitations of liability as provided in Section 768.28, Florida Statutes, or other applicable law. Indemnification obligations under this Contract shall include the payment of all settlements, judgments, damages, liquidated damages, penalties, forfeitures, back pay awards, court costs, arbitration and/or mediation costs, litigation expenses, attorney fees, and paralegal fees (incurred in court, out of court, on appeal, or in bankruptcy proceedings) as ordered.

XIII. INSURANCE.

A. The District shall provide and maintain Public Official Liability and General Liability insurance policies, each in an amount not less than One Million Dollars ($1,000,000.00) throughout the term of this Contract.

B. The Consultant shall provide and maintain the following levels of insurance coverage at all times throughout the term of this Contract:

i. Worker's Compensation Insurance in accordance with the laws of the State of Florida.

ii. General Liability Insurance with the limit of One Million Dollars ($1,000,000.00) per each occurrence.

iii. Professional Liability Insurance with limit of no less than One Million Dollars ($1,000,000.00) per each occurrence.

iv. Employment Practices Liability Insurance with limit of Two Million Dollars ($2,000,000.00) per each occurrence.

v. Comprehensive Automobile Liability Insurance for all vehicles used by the Consultant's staff, whether owned or hired, with a combined single limit of One Million Dollars ($1,000,000.00).

C. Except with respect to Professional Liability and Worker's Compensation insurance policies, the District and its officers, supervisors, staff, and employees shall be listed as additional insureds on each insurance policy described above. None of the policies above may be canceled during the term of this Contract (or otherwise cause the District to not be named as an additional insured where applicable) without thirty (30) days written notice to the District. Consultant shall furnish the District with a Certificate of Insurance evidencing compliance with this section upon request. Insurance should be from a reputable insurance carrier, licensed to conduct business in the State of Florida.

D. If the Consultant fails to secure or maintain the required insurance, the District has the right (without any obligation to do so, however) to secure such required insurance, in which event the Consultant shall pay the cost for that required insurance and shall furnish, upon demand, all information that may be required in connection with the District's obtaining the required insurance.

XIV. ASSIGNMENT. Except as provided in this section, neither the District nor the Consultant may assign this Contract or any monies to become due hereunder without the prior written approval of the other. Any assignment attempted to be made by the Consultant or the District without the prior written approval of the other party is void.

XV. COMPLIANCE WITH PUBLIC RECORDS LAWS. Consultant understands and agrees that all documents of any kind provided to the District in connection with this Contract may be public records, and, accordingly, Consultant agrees to comply with all applicable provisions of Florida law in handling such records, including but not limited to Section 119.0701, Florida Statutes. Consultant acknowledges that the designated public records custodian for the District is Rizzetta & Company, Inc. ("Public Records Custodian"). Among other requirements and to the extent

applicable by law, the Consultant shall 1) keep and maintain public records required by the District to perform the service; 2) upon request by the Public Records Custodian, provide the District with the requested public records or allow the records to be inspected or copied within a reasonable time period at a cost that does not exceed the cost provided in Chapter 119, Florida Statutes; 3) ensure that public records which are exempt or confidential and exempt from public records disclosure requirements, are not disclosed except as authorized by law for the duration of the contract term and following the contract term if the Consultant does not transfer the records to the Public Records Custodian of the District; and 4) upon completion of the Contract, transfer to the District, at no cost, all public records in Consultant's possession or, alternatively, keep, maintain and meet all applicable requirements for retaining public records pursuant to Florida laws. When such public records are transferred by the Consultant, the Consultant shall destroy any duplicate public records that are exempt or confidential and exempt from public records disclosure requirements. All records stored electronically must be provided to the District in a format that is compatible with Microsoft Word or Adobe PDF formats.

IF THE CONSULTANT HAS QUESTIONS REGARDING THE APPLICATION OF CHAPTER 119, FLORIDA STATUTES, TO THE CONSULTANT'S DUTY TO PROVIDE PUBLIC RECORDS RELATING TO THIS CONTRACT, CONTACT THE CUSTODIAN OF PUBLIC RECORDS AT (813) 514-0400, OR BY EMAIL AT INFO@RIZZETTA.COM, OR BY REGULAR MAIL AT 3434 COLWELL AVENUE, SUITE 200, TAMPA, FLORIDA 33614.

XVI. **NOTICES.** All notices, requests, consents and other communications under this Contract ("**Notices**") shall be in writing and shall be delivered, mailed by First Class Mail, postage prepaid, or overnight delivery service, to the parties, as follows:

If to the District:	Bobcat Trail Community Development District 3434 Colwell Avenue, Suite 200 Tampa, Florida 33614 Attn: District Manager
With a copy to:	Persson, Cohen, Mooney, Fernandez & Jackson, P.A. 6853 Energy Court Lakewood Ranch, FL 34240 Attn: District Counsel
If to the Consultant:	Rizzetta & Company, Inc. 3434 Colwell Avenue, Suite 200 Tampa, Florida 33614

Except as otherwise provided in this Contract, any Notice shall be deemed received only upon actual delivery at the address set forth above. Notices delivered after 5:00 p.m. (at

the place of delivery) or on a non-business day, shall be deemed received on the next business day. If any time for giving Notice contained in this Contract would otherwise expire on a non-business day, the Notice period shall be extended to the next succeeding business day. Saturdays, Sundays, and legal holidays recognized by the United States Government shall not be regarded as business days. Counsel for the District and counsel for the Consultant may deliver Notice on behalf of the District and the Consultant, respectively. Any party or other person to whom Notices are to be sent or copied may notify the other parties and addressees of any change in name or address to which Notices shall be sent by providing the same on five (5) days written notice to the parties and addressees set forth herein.

XVII. **EFFECTIVE DATE.** This Contract shall become effective upon execution by both the District and the Consultant and shall remain effective until terminated by either the District or the Consultant in accordance with the provisions of this Contract.

XVIII. **HEADINGS FOR CONVENIENCE ONLY.** The descriptive headings in this Contract are for convenience only and shall neither control nor affect the meaning or construction of any of the provisions of this Contract.

XIX. **AGREEMENT; CONFLICTS.** This instrument, together with accompanying **Exhibit A**, shall constitute the final and complete expression of this Contract between the District and the Consultant relating to the subject matter of this Contract. To the extent of any conflict between this instrument and **Exhibit A**, this instrument shall control.

XX. **DEFAULT AND PROTECTION AGAINST THIRD PARTY INTERFERENCE.** A default by either the District or the Consultant under this Contract shall entitle the other to all remedies available at law or in equity, which may include, but not be limited to, the right of damages, injunctive relief, and/or specific performance. The District shall be solely responsible for enforcing its rights under this Contract against any interfering third party. Nothing contained in this Contract shall limit or impair the District's right to protect its rights from interference by a third party to this Contract.

XXI. **THIRD PARTY BENEFICIARIES.** This Contract is solely for the benefit of the District and the Consultant and no right or cause of action shall accrue upon or by reason, to or for the benefit of any third party not a formal party to this Contract. Nothing in this Contract, express or implied, is intended or shall be construed to confer upon any person or corporation other than the District and the Consultant any right, remedy, or claim under or by reason of this Contract or any of the provisions or conditions of this Contract; and all of the provisions, representations, covenants, and conditions contained in this Contract shall inure to the sole benefit of and shall be binding upon the District and the Consultant and their respective representatives, successors, and assigns.

XXII. **COMPLIANCE WITH GOVERNMENTAL REGULATION.** The Consultant shall keep, observe, and perform all requirements of applicable local, State, and Federal laws, rules, regulations, and ordinances in performing the services under this Contract. If the Consultant fails to notify the District in writing within five (5) days of the receipt of any notice, order, required to comply notice, or a report of a violation or an alleged violation, made by a local, State, or Federal governmental body or agency or subdivision thereof with respect to the services being rendered under this Contract or any action of the Consultant or any of its agents, servants, employees, or materialmen, or with respect to terms, wages, hours, conditions of employment, safety appliances, or any other requirements applicable to provision of services, or fails to comply with any requirement of such agency within five (5) days after receipt of any such notice, order, request to comply notice, or report of a violation of an alleged violation, the District may terminate this Contract, such termination to be effective immediately upon the giving of notice of termination.

XXIII. **ARM'S LENGTH TRANSACTION.** This Contract has been negotiated fully between the District and the Consultant as an arm's length transaction. The District and the Consultant participated fully in the preparation of this Contract with the assistance of their respective counsel. In the case of a dispute concerning the interpretation of any provision of this Contract, the Parties are deemed to have drafted, chosen, and selected the language, and any doubtful language shall not be interpreted or construed against any party.

XXIV. **COUNTERPARTS.** This Contract may be executed in any number of counterparts, each of which when executed and delivered shall be an original; however, all such counterparts together shall constitute, but one and the same instrument.

XXV. **E-VERIFICATION**. Pursuant to Section 448.095(2), Florida Statutes,

A. Contractor represents that Contractor is eligible to contract with the District and is currently in compliance and shall remain in compliance, for as long as it has any obligations under this Agreement, with all requirements of the above statute; this includes, but is not limited to, registering with and using the United States Department of Homeland Security's E-Verify system to verify the work authorization status of all employees hired on or after January 1, 2021.

B. If the District has a good faith belief that the Contractor has knowingly violated Section 448.09(1), Florida Statutes, the District shall terminate this Agreement as required by Section 448.095(2)(c), Florida Statutes. If the District has a good faith belief that a subcontractor knowingly violated Section 448.09(1), Florida Statutes, but the Contractor otherwise complied with its obligations thereunder, the District shall promptly notify the Contractor and the Contractor shall immediately terminate its contract with the subcontractor.

C. If this Agreement is terminated in accordance with this section, then the Contractor shall be liable for any additional costs incurred by the District.

XXVII. FORCE MAJEURE. The parties hereto shall be excused from the obligation to perform pursuant to the terms of this Contract to the extent that such party's performance is prevented due to any delay, or stoppage due to strikes, lockouts, labor disputes, labor shortages, acts of war, terrorism, terrorist activities, pandemic, epidemic, banking or financial institution closures, inability to obtain services from third parties, governmental actions, civil commotions, fire, flood, hurricane, earthquake, or other casualty, and other causes beyond the reasonable control of the party obligated to perform (collectively, a "**Force Majeure**"), except with respect to amounts to be paid by the District for services actually provided by the Agent pursuant to this Contract during a Force Majeure. Notwithstanding anything to the contrary contained in this Contract, a Force Majeure shall excuse the performance of such party for a period equal to any such prevention, delay or stoppage and, therefore, if this Contract specifies a time period for performance of an obligation of either party (other than payment to the Agent by District for services actually provided during a Force Majeure unless there is an event causing banking or financial institution closures), that time period shall be extended by the period of any delay in such party's performance caused by a Force Majeure. The foregoing shall not be interpreted as extending the term or renewal term of this Contract.

XXVIII. DISCLOSURE. Rizzetta & Company, Inc. is an affiliate of FirstService Residential Florida, Inc.

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Therefore, the Consultant and the District each intend to enter this Contract, understand the terms set forth herein, and hereby agree to those terms.

ACCEPTED BY:

RIZZETTA & COMPANY, INC.

BY: William J Rizzetta

PRINTED NAME: William J. Rizzetta

TITLE: President

DATE: February 21, 2025

BOBCAT TRAIL COMMUNITY DEVELOPMENT DISTRICT

BY: _____

PRINTED NAME: _____

TITLE: _____

DATE: _____

Exhibit A – Scope of Services
Exhibit B – Schedule of Fees
Exhibit C – Municipal Advisor Disclaimer
Exhibit D – Human Trafficking Affidavit

EXHIBIT A
Scope of Services

REQUIRED WEB SITE CONTENT: Pursuant to section 189.016 & 189.069, Florida Statutes, special district web sites are required to include and make available the following information or documents, which requirements may be changed from time to time. Changes to the requirements may be subject to additional fees:

1. The full legal name of the special district.
2. The public purpose of the special district.
3. The name, official address, official e-mail address, and, if applicable, term and appointing authority for each member of the governing body of the special district.
4. The fiscal year of the special district.
5. The full text of the special district's charter, the date of establishment, the establishing entity, and the statute or statutes under which the special district operates, if different from the statute or statutes under which the special district was established. Community development districts may reference chapter 190 as the uniform charter but must include information relating to any grant of special powers.
6. The mailing address, e-mail address, telephone number, and website uniform resource locator of the special district.
7. A description of the boundaries or service area of, and the services provided by, the special district.
8. A listing of all taxes, fees, assessments, or charges imposed and collected by the special district, including the rates or amounts for the fiscal year and the statutory authority for the levy of the tax, fee, assessment, or charge. For purposes of this subparagraph, charges do not include patient charges by a hospital or other health care provider.
9. The primary contact information for the special district for purposes of communication from the department.
10. A code of ethics adopted by the special district, if applicable, and a hyperlink to generally applicable ethics provisions.
11. The budget of the special district and any amendments thereto in accordance with s. 189.016.
12. Tentative budgets shall be posted at least two (2) days before the budget hearing and remain on District website for forty-five (45) days.
13. Final adopted budgets shall be posted within thirty (30) days after adoption and remain on District website for two (2) years.
14. Budget amendments shall be posted within five (5) days after adoption and remain on District website for two (2) years.
15. The final, complete audit report for the most recent completed fiscal year and audit reports required by law or authorized by the governing body of the special district

or a link to the District's most recent final, complete audit report on the Auditor General's website.

16. A listing of the District's regularly scheduled public meetings as required by s. 189.015(1).
17. The link to the Department of Financial Services' website as set forth in s. 218.32(1)(g).
18. At least seven (7) days before each meeting or workshop, the agenda of the event, The information must remain on the website for at least one (1) year after the event.

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EXHIBIT B
Schedule of Fees

One-Time Services shall be billed upon completion:

Website Content:	Yes____	No____	$ 750.00
Email Set-up:	Yes____	No____	$ 500.00
Total One-Time Services:			**$ _____**

Standard On-Going Services shall be billed in advance monthly pursuant to the following schedule:

		MONTHLY
Website Management:		$ 100.00
Email (50 GB per user) at $20.00 per month per account:		
Board Supervisor Account	_____ X $20.00	$_____
Onsite Staff Account	_____ X $20.00	$_____
Miscellaneous Account	_____ X $20.00	$_____
Total Standard On-Going Services:		**$_____**

EXHIBIT C
Municipal Advisor Disclaimer

Rizzetta & Company, Inc., does not represent the District as a Municipal Advisor or Securities Broker nor is Rizzetta & Company, Inc., registered to provide such services as described in Section 15B of the Securities Exchange Act of 1934, as amended. Similarly, Rizzetta & Company, Inc., does not provide the District with financial advisory services or offer investment advice in any form.

EXHIBIT D

Nongovernmental Entity
Human Trafficking Affidavit
Section 787.06(13), Florida Statutes

I, the undersigned, am an officer or representative of Rizzetta & Company, Incorporated and attest that Rizzetta & Company, Incorporated does not use coercion for labor or services as defined in Section 787.06, Florida Statutes. Under penalty of perjury, I hereby declare and affirm that the above stated facts are true and correct.

FURTHER AFFIANT SAYETH NOT.

Rizzetta & Company, Incorporated, a Florida Corporation

By: William J Rizzetta
Name: William J. Rizzetta
Title: President

Tab 5

Bobcat Trail Landscape Committee Meeting Minutes
Tuesday January 21, 2025
Bobcat Trail Community Center
1352 Bobcat Trail Boulevard
North Port Florida 34288

1. Call to Order

The meeting was called to order at 12 PM.

2. Roll Call/Statement of Quorum

Present for the meeting representing the Bobcat Trail Landscape Committee (BCTLC) were Jeff Brall, Val Duemmel, Bill Hadovski, and Laura Filler who attended via phone. Artistree was not represented and there were no residents or members of the general public present.

3. Approval/Adoption of Agenda

January 21 2025 Bobcat Trail Landscape Committee Meeting Agenda was approved as issued (See Attachment 1).

4. Public Comment on Agenda Items

There was no public comment.

5. Meeting Minute Approval

The meeting minutes for December 17, 2024, BCTLC meeting were approved with comments.

6. Old Business

A. Artistree Contract matrix review for January 2025. (See Attachment 4)

(1) The January 2025 Contract Matrix review was tabled due to Artistrees' absence from the meeting.

(2) The review of The December 27th, 2024, Bobcat Trail Aquatic and Landscape Inspection Report (see Attachment 5) prepared by Rizzetta & Company (John Fowler Landscape Specialist) was also tabled do to Artistrees' absence from the meeting.

(3) The issue of knowing in advance what work will be done in the coming work period was discussed. It was felt that a short text each Monday morning would work the best. By providing the weekly work plan Artistree would be able to consider the weather when forecasting each week's work. If weekly reporting is not a viable option, the BCTLC would request a monthly plan, however a monthly work plan could not consider weather disruptions. Generally, we are looking for better communications.

(4) Artistree has been directed to remove all dead plants.

B. Commercial/Woodhaven/Toledo Blade/Under the Trees

(1) The area Under The Trees, Toledo Blade, Woodhaven, and the Commercial Side all look good. There is some trash behind the hospital in the areas maintained by Bobcat/Artistree. There is still a pile of brush next to the pump house in the Area Under The Trees that needs to be removed (second request).

(2) Artistree explained that per their contract they only do very limited maintenance on the Oak Trees. Specifically insuring there was vertical clearance for personal and vehicle traffic.

(3) Based on Artistrees' recommendation Green Topps was contacted. Green Tops is a full-service tree maintenance company and will do everything from minor trimming to tree removal.

(4) Tree Topps explained that trimming Oak Trees was tricky. New growth to replace the old growth could be thick and weigh more adding risk to the tree. Green Topps thought our Oak Trees looked pretty good and did not feel they needed immediate attention.

(5) Green Tree was requested to provide a quote for yearly inspection, and maintenance of the Bobcat Trail Oak Trees. There are about 56 + /- oak trees on Bobcat Community Property.

C. Monuments

(1) It was generally felt that the CDD Landscape areas looked pretty good but were ready for a trim. Especially around the monuments it was felt that the bushes should be more squared off.

D. Miscellaneous

(1) The irrigation well timer across Bobcat Trail near the community center still has a problem. The timer is powered from the same power as the streetlights. The streetlight and thus the timer is controlled by a dusk to dawn sensor. This throws the timer off causing it to work randomly if at all. It was discussed moving the timer to the well and powering it from the well or possibly using a timer with a battery backup. The situation needs to be evaluated and an alternate method developed. It was also noted that the power on the front monument was still tripping on ground fault, de-energizing the timer and disrupting the irrigation system.

(2) Two large pines behind a resident home on Coconut are in danger of coming down. They are near the home's cage and the home itself. The situation has been deemed a safety hazard. We have two estimates for taking the trees down, Green Topps $5,500 (see attachement 2) and Perrys Landscaping $3000 (see attachement 3). Because the trees are still alive a permit from the town and replacement trees will be required. The trees will be taken down by tree climbers and the stumps will not be removed. The selected company's license and insurance must be verified. Further evaluation is required to determine if the Community Development District must follow the North Port tree removal ordinances.

7. New Business

A. Shoval Ready Projects

(1) Mulch/Sod enhancement project.

- In process
- Scope and impacted areas defined
- Should be ready to start in February
- Add the area around pool by the side parking lot

(2) Pool Area

- Divide the pool area into two sections, one would be part of the Mulch/Sod Enhancement Project
- The second part would be the Drainage Enhancement Project on the Club House side of the pool. This will become part of the Five-Year Plan
- Need to meet with the Landscape Contractor to get future Projects (5-year Plan) organized and budgeted

(3) Area around Guard House

- Design in progress almost complete
- Basic space layout complete (see Attachment 8)

B. Five Year Plan

(1) Lighting wish list "Phase 5" (See Attachment 7).

(2) Irrigation System (Phase 5).

C. Landscape Lighting

(1) Still need to meet with Landscape Contractor.

(2) Many lights on the Commercial Side are blocked by landscape plants. Plants and/or lights need to be repositioned to improve over all lighting effect.

(3) There are still landscape lights out that were part of the contract with the Landscape Lighting company to repair.

(4) It was discussed and decided that no additional solar powered landscape lights would be procured or used at this time.

(5) The bullnose lights by the entrance way to the community center will be repaired once the Community Center Sign is replaced.

D. Christmas Lights

(1) $500 in additional Christmas decoration funds will be needed to address the problem with GFI trips.

(2) A separate list and costs for next year's decorations is being maintained by committee Chairperson.

8. Budget

(1) Budget (Attachement 6) was reviewed and discussed.

(2) The FEMA application for Storm Debrie Removal Reimbursement has been denied. The basis for the denial was FEMA's perception, from the documents and pictures we submitted that none of the Bobcat Trail roads were blocked, due to storm debris, to emergency vehicles. The roads were blocked but residents cleared the roads immediately after the storm and prior to photo documentation. An appeal of the decision is being considered however the appeal process must be supported with photographic evidence showing the initial post/storm conditions. It is requested that if anyone has post Ian storm pictures showing storm debris blocking the roads to please forward them to the CDD. Additional steps being considered are to reach out to Representatives Stuebe's office, and /or file an appeal. An appeal will cost an additional application fee. If the appeal is turned down the request will go to arbitration.

(3) Additional funding may also be available through the Golf Course Tax Payment. Most of this money owed us by the Golf Course Owner came from the Bobcat Trail Landscape Budget so it is expected that the bulk of the anticipated 112K$ will go back to the Landscape Budget.

9. Public Comment

(1) No public comment.

10. Adjournment

(1) Adjourned at 2:29 PM

ATTACHMENTS

1. Approved Agenda for January 21, 2025, Bob Cat Trail Landscape Committee Meeting.
2. Estimate # 17073 Green Topps
3. Estimate # 1051 Perrys Lands and Lawns LLC
4. BCTLC Yearly Contract Schedule Grid.
5. Bobcat Trail Aquatic and Landscape Inspection Report dated December 27th, 2024, by Rizzetta & Company John Fowler Landscape Specialist (Landscape Section Only).
6. Budget Report 53900- Other Physical Environment (Landscape)
7. Landscape Lighting Wish List
8. Guard House Planting Bed Layout.

Tab 6

Bobcat Trail

AQUATICS AND LANDSCAPE INSPECTION REPORT



February 25th, 2025

Rizzetta & Company

John Fowler – Landscape Specialist

Rizzetta & Company
Professionals in Community Management

Aquatics Inspection Section

General Updates, Recent & Upcoming Maintenance Events

- ❑ **Pond levels are down but all are looking good at the moment.**

Ponds West of Toledo Blade Blvd..

1. Pond behind the office buildings West of Toledo Blade Blvd.
    a) Pond looks good.



2. Pond behind the hospital West of Toledo Blade Blvd.
    a) Pond is looking good.



Pond D and A1

3. Pond D:
    a) Pond level low and littoral shelf .
    b) Overall looks good.



4. Pond A1:
    a) Pond looks good overall.





Pond A2 and E

5. Pond A2:
    a) Pond is low like all this time of year. Pond looks good.





6. Pond E:
    a) Pine tree debris down on littoral shelf bank.
    b) Small branch in the water by the 5th golf green.





Pond F1 and F2

7. Pond F1:
    a) Pond looking good but low water level..



8. Pond F2:
    a) Pond looks good.
    b) There is a downed tree along the lake bank that should be removed





Pond F3 and H2

9. Pond F3:
    a) Pond looks good with low lake levels.



10. Pond H2:
    a) Debris along the bank that should be removed from a downed Pine Tree by 11 tee box.
    b) There is a small washout along the lake bank behind the houses. This has progressively gotten worse.





Pond G and H1

11. Pond G:
    a) Pond level low but looks good.



12. Pond H1:
    a) Pond looks good except Bulrush has died off. Should we remove this?



Pond J1, J2, and J3

13. Pond J1
    a) Pond looks good.



14. Pond J2
    a) Pond looks good.



15. Pond J3
    a) Palm debris down along the lake bank.



Pond M and 1

16. Pond M:
    a) Pond looks good.



17. Pond I:
    a) Pond looks good.





Pond K1, K2, and C

18. Pond K1:
    a) Pond looks good.
    b) There are a couple logs down in the water close to 17 green.



19. Pond K2:
    a) Two areas now needed for lake bank restoration.
    b) Rest of the pond looks good.





20. Pond C looks good.



Landscape Summary, Bobcat Village Center Dr.

General Updates, Recent & Upcoming Maintenance Events

- ❑ **Treat ant mounds throughout district.**
- ❑ **Some dead hanging Palm fronds starting to show.**

The following are action items for LMP to complete. Please refer to the item # in your response listing action already taken or anticipated time of completion. Red text indicates deficient from previous report. **Bold Red text** indicates deficient for more than a month. Green text indicates a proposal has been requested. Blue indicates irrigation. **Bold & Underlined** is info or a question for the BOS. Orange is items for Staff to address.

1. Noting it appears broadleaf turf weeds were treated on Bobcat Village Center Dr. Some pesky weeds may need retreatment.
2. Repair a small rut in the median island on Bobcat Village Center Dr. close to Toledo Club apartments. (Pic. 2)



3. Diagnose and treat a couple Jatrophas that have not flushed out new growth in the median island on Bobcat Village Center Dr. by the gas station. (Pic. 3>)
4. Noting a couple ant mounds in the beds on Bobcat Village Center Dr. Treat and once no longer active, smooth out to the surrounding grade.
5. Treat some weeds in the tree rings on Bobcat Village Center Dr. ROWs.
6. Remove a small dead hanging Oak branch in the median at Bobcat Village Center Dr. and Bobcat Trail W intersection.
7. Hand pull some weeds in the annual beds on the exit monument of Bobcat Trail and Toledo Blade intersection.
8. Diagnose and treat a couple declining Duranta 'Gold Mound' on the median island on Bobcat Trail E after entering through the gate.
9. Noting most of the Croton are starting to flush out new growth.



Bobcat Trail

10. Need to improve the turf on the exit ROW of Bobcat Trail E by the guard house. Not sure if this is from irrigation being down or winter weeds dying off. (Pic. 10)



11. Diagnose and treat a few declining Red-Hot Hibiscus in the median beds on Bobcat Trail.

12. Remove low lying dead palm fronds in the roundabout bed of Solitary Palm Ct.

13. Diagnose and treat some declining Foxtail Ferns in the median beds on Bobcat Trail E. Remove any dead stalks within them.

14. There are a few palms with dead fronds in the median beds on Bobcat Trail E. Most notably the Pineapple Palm overhanging the road near the amenity center. As well as the Foxtail Palm at the amenity center intersection. (Pic. 14>)

15. There are a couple dead Red Sister Ti stalks that should be removed in the medians on Bobcat Trai E. from guard gate to amenities.

16. Noting most of the turf has recovered on Bobcat Trail E from the irrigation being down in the past. There are still a couple spots that need improvement.

17. Treat joint crack weeds in concrete culverts and asphalt in medians on Bobcat Trai.

18. Diagnose at treat a few declining Copperleaf on the entrance side of the road heading into the amenity center parking lot. (Pic. 18)



19. Diagnose and treat the Ornamental Grasses on the entrance side of the road heading into the amenity center parking lot. These should be cut back at the same time.

20. Diagnose and treat chlorotic ‘Petit” Ixora on the entrance and exit side of the amenity center at Bobcat Trail intersection.

21. Treat a large ant mound in the bed of the parking lot by the pool.

22. Noting Woodhaven Dr. looks good, and the fence line has been sprayed out. Just a couple vines that should be pulled.



23. Noting the tree stumps still present on the entrance side of the road heading into the amenity center parking lot. Provide a proposal for removal. (Pic. 23)



24. Pull a large weed at the stop sign on the exit side of Bobcat Trail at Woodhaven intersection. (Pic. 24)



Tab 7

Rizzetta & Company

UPCOMING DATES TO REMEMBER

- **Next Meeting:** April 1, 2025
- **FY 2023-2024 Audit Completion Deadline:** June 2025
- **Next Election (Seats 1, 2, and 4):** November 2026

District Manager's Report

February 21

2025

BOBCAT TRAIL CDD

FINANCIAL SUMMARY		1/31/2025
General Fund Cash Balance		$ 962,665.00
Investments Operating		$ 525,004.00
Debt Service Fund Investment Balance		$ 130,857.00
Total Cash and Investment Balances		**$ 1,618,526.00**
General Fund Expense Variance:	**$109,019**	**Under Budget**

Rizzetta & Company

Financial Statement Notes:

The District is currently underbudget. The line items reflecting variances in the financial statements are as follows:

Line Item	Variance
Employee Payroll Processing Fees	$ 1,041.00
Gate Maintenance and Repair	$ 7,607.00
Security Service and Patrol	$ 5,350.00
Utility Street Lights	$ 720.00
Utility Services Guardhouse	$ 657.00
Aquatic Maintenance	$ 2,147.00
Landscape Maintenance	$ 18,339.00
Tree Trimming Services	$ 1,587.00
Employee Salaries	$ 6,729.00
Maintenance and Repairs	$ 4,610.00
Property Insurance	$ 2,181.00
Pool repair and maintenance	$ 180.00

Custom Reserves: Custom Reserves will be either be joining us for discussion for the meeting or for the Board's IA Meeting. I am pending confirmation.